

CONTRACT AGREEMENT 2019-2020

The agreement is made between:

PARTY A: FUSION SUITES SAIGON		PARTY B: 365 TRAVEL AND INVESTMENT CO., LTD	
Address:	3 - 5 Suong Nguyet Anh Street, District 1, Ben Thanh Ward, HCMC, Vietnam	Address:	No.108, G2 Building, Thanh Cong Street, Ba Dinh District, Ha Noi, Vietnam
Telephone:	84 28 3925 7257	Telephone:	+84 24 3835 4899
Fax:	84 28 3926 2800	Fax:	+84 24 3773 9100
Email:	reservations.fssg@fusion-resorts.com	Email:	holy.hoang@365travel.asia
Representative:	Mr. RICHARD FROT	Representative:	Ms. HOANG THI MAI HUONG
Title:	General Manager	Title:	Contracting Director

Validity: 01 November 2019 – 31 October 2020
 Market: All
 Currency: VND
 Rate basis: per room per night

Room type	Room rate	Occupancy	Meal Plan
Suite	VND 3,909,000	2A + 1C (under 6)	BBS
Corner Suite	VND 4,383,000	2A + 1C (under 6)	BBS
Family Suite 2RB	VND 6,633,000	3A + 1C (under 6)	BBS

Conditions:

- * Above contracted rates are in Vietnam Dong (VND) and inclusive of service charge (5%) and applicable value added tax (10%).
- * Rates are non-commissionable and based on per room per night
- * Rates include bed, breakfast and spa treatment (per night stayed) for up to 2 people per room per night for Suite and Corner Suite, up to 4 people for Family Suite.
- * GIT rates (>= 10 rooms) are available upon request.
- * Allotments are subject to request for all FIT bookings and contracted by separate annex with respective terms and conditions.
- * This contract is subject to terms & conditions, which are an integral part of the contract.
- * Booking must mention code of market or tour operator's name for reference.
- * Wholesaler, tour operators, travel agents have to use selected hotel pictures to design or list resorts on brochure, flyer or other PR material as authorized by resort.
- * Hotel reserves/affirms the obligation of the contract partner to charge a MINIMUM MARK-UP 5% (FIVE) on this contracted rate to Tour operator, international wholesaler and others.
- * **Partner is requested to make INCLUSIVE spa treatment offer very clear in the brochure as well within their sales materials.**

Special offers:

- * Early Bird 45 Days: Bookings reserved 45 days in advance of arrival will receive a 10% discount on room rates (NOT COMBINABLE).
- * Early Bird 60 Days: Bookings reserved 60 days in advance of arrival will receive a 15% discount on room rates (NOT COMBINABLE).
 - ✓ Early bird offer can be applied to extra bed.
 - ✓ Early bird offer are only applicable against room rates, NOT meal plans.
 - ✓ The special offer must be promoted and listed on catalogue/brochure/flyer of tour operators and copy to resort for reference.

Promotions/offers are not applied in the below dates:

25 December 2019 – 05 January 2020
 25 January 2020 – 05 February 2020

Added value benefits:

1. One spa treatment per person per night stayed included
2. Free Wi-Fi internet access
3. Daily Café Style breakfast to eat in or take away

Meal rate:

Meal rates per person	From 12 years old +	From 6 - under 12 years old
Half Board (Set menu)	VND 552,000	VND 276,000

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Full Board (Set menu)	VND 1,012,000	VND 506,000
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Distribution of Contracts:

- Contract Rates are valid for bundled, packaged or brochure international leisure business only. Contract rates are only valid for bona fide Tour Operators.
- Contract rates cannot be offered by the Tour Operator direct to the consumer via the Internet, or by any other internet channels, through owned, affiliated or subsidiary companies, without prior written approval from the hotel.

Distribution of Contracts on the Internet:

- Contract rates are valid for bundled, packaged or brochure international leisure business only and cannot be offered in other markets that are specified.
- The Contract rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution retailing via the Internet.

Children Policy:

- * Maximum one (1) children per room under 6 years old is complimentary when sharing parents' room and utilizing existing bed.
- * Children from 06 to 09 years old, using existing bedding, will be charged at VND 230,000 net including breakfast.
- * Children from 06 years to 15 years old will be charged at VND 690,000 net including breakfast and extra bed.
- * Children from 10 years old are required compulsory extra bed.
- * Children from 16 years and older will be charged extra bed at VND 1,104,000 net per night including breakfast and spa treatments.
- * Baby cot is complimentary upon request and subject to availability and room type to accept.
- * Children under 16 years old are not allowed to use spa.

Bank Account Details:

Account Holder: Fusion Suites Sai Gon Hotel Co., Ltd (Công ty TNHH Khách sạn Fusion Suites Sài Gòn)
Bank Name: Vietcombank - Ho Chi Minh Branch
Account Number: 007 100 100 4303 (in VND)
Account Number: 007 137 117 1462 (in USD)
Swift Code: BFTVNVX

Payment :

Full payment must be received 7 days prior to arrival for low season, 14 days prior for high season.
Once credit had been approved, the company is required to settle the account due to the hotel within 15 days of the invoice date.
Should the company fail to settle the accounts within the said credit period, the hotel reserves the right to withdraw the credit facility.
The hotel also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled.
Invoice paid after the credit period will attract interest at 1.5% per month. After 60 days bookings may not be honored or credit will be recalled and new bookings need to be settled 72 hours prior to arrival.
Bank transfer fees will be the responsibility of the booking agent.

Cancellation:

The company shall notify the hotel in writing of any cancellation prior to the minimum notice period. In the event of late notification, a cancellation charge will apply

* Low season : 01 May 2020 – 31 August 2020

7 days before arrival date at no charge. Cancellation within 7 days one night charge.

* High season : 01 November 2019 – 30 April 2020 and 01 September 2020 – 31 October 2020

14 days before arrival date at no charge. Less than 14 days prior to arrival full charge for entire stay charge.

Any individual cancelled (reduce room, no-show, or shortened stay) is subject to a full cancellation fee equal to total room night(s) revenue for each individual cancellation.

Cancellation policy for group (>= 10 rooms) will be informed in confirmation letter.

Terms and condition:

- Rates must be packaged and not applicable as clean rate on internet.
- Room rates for group, series, incentive, corporate meeting, trade delegation and convention groups are available upon request.
- There are no black-out dates or fixed restrictions at the time of contracting, however the hotel reserves the right to impose additional black-out dates.
- Extra bed fee is inclusive of breakfast and spa treatment for people from 16 years old.
- Check-in time is 14:00.
Check-out time is 12:00 noon. From 12:00 noon to 18:00, 50% of room rate will be charged and after 18:00, a full nightly rate will be charged. Hotel may offer complimentary late check out up to 14:00; however, this is subject to availability and at the hotel discretion.
- Booking amendments: Changes in booking must be notified 7 days in advance during low season and 14 days in high season and unused room nights are not refundable for early departure. Extension of stay is subject to space and rate availability. If rooms nights can be re-sold, these cancellation fees may be waived, subject to hotel discretion.
- Approved vouchers should accompany individual arrivals unless a prior arrangement has been agreed in writing.

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8. All prices are quoted in Vietnam Dong (VND) and should be settled in upon checkout otherwise agreed payment can be made in any of the following forms: Bank Draft, Bank Notes, Money Order or Telegraphic Transfer.
9. All cancellation must be informed in writing and have to be acknowledged by the resort. In the event of a non-arrival on the scheduled date, the company shall be held responsible for payment computed as the equivalent for the full length of stay.
10. All room reservations and rates are subject to availability and confirmation unless allocations have been confirmed.
11. The hotel must be featured as a 4 star category hotel. Text and images need to be approved and proof read by the hotel before publishing. Any hotel visuals presented should be made only the signed and dated approval and vetting from our side. Any default in any clause of this agreement shall result in immediate termination of this agreement.
12. Please note all rates committed to your company are confidential and should not be published at any time or disclosed to a third party for any reason or purpose including on-line agents.
13. Under no circumstance are the given contracted rates to be passed on/sub-contracted to any dot.com/travel websites/third party company/organization that will result in the sale of our rooms be made at rates lower than those established by our hotel as benchmark rates. The hotel reserves the right to terminate this agreement without any advance notice and proceed to halt all acceptance of bookings from your company if any violations are found to have originated incurred from your end unless a separate contract has been drawn up just for such purpose. Any feature of our hotel on your official company site should be made with no indication/mention of rates/tariff other than those authorized by the hotel. The accordance of rooms allocation from our end to your end is made on the mutual agreed of the parties that such allotment shall be used strictly and exclusively by you for purpose of free-sales by your retail agents and with the required brochure feature as stipulated in clause 1. This "retail agent" definition does not include the above third party internet booking sites nor any other organizations that could possibly present our rate lower than our given benchmark sell at that point of time.
14. Leisure rate is defined by our hotel as the rate which will be quoted to any non qualified guest who books our hotel regardless of channel of reservation.
15. In the event of any unexpected disasters (earthquake, fire, flood ...), or any political unrest or unplanned construction in/around the property, the hotel reserves the right to move the guests to alternative 4* hotels of the same and equal category with similar room rates.
16. The hotel reserves the right at any time by giving notice in writing to cancel this agreement should the company fail to fulfil these terms & conditions.
17. Tax fluctuations: Should the Government either increase or decrease the percentage of tax collected on room and/or meal rates, or imposes additional taxes and levies, the hotel reserves the right to adjust the contract rates accordingly.
18. Disputes : It is expressly agreed and declared that the proper law of the Agreement is the law of Vietnam and that any disputes, action or other matters arising hereunder shall be determined by the court in Ho Chi Minh City, Vietnam in accordance with the laws and procedures of Vietnam under any and all circumstances.

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void.

On behalf of:
FUSION SUITES SAIGON

Accepted by:
365 TRAVEL AND INVESTMENT CO., LTD

Mr. RICHARD FROT
General Manager
Date:

Mr. AKSHAY MOZA
Commercial Director
Date:

Ms. HOANG THI MAI HUONG
Contracting Director
Date: